



U.S. Department  
of Transportation

**Research and  
Special Programs  
Administration**

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 5243 (EXTENSION)  
FIRST REVISION May 30, 1978

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 5243 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

007 31 1001

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Austin Powder Company  
Cleveland, OH

June 13, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



DEPARTMENT OF TRANSPORTATION

MATERIALS TRANSPORTATION BUREAU

WASHINGTON, D.C. 20590

DOT-E 5243

(FIRST REVISION)

1. Hercules Incorporated, Wilmington, Delaware, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a Class C or Class A explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes specific packaging for the tailless MS connector and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

- E. I. du Pont de Nemours & Co., Inc., Wilmington, Delaware - PTE-1.
- Austin Powder Company, Cleveland, Ohio - PTE-2.
- Apache Powder Company, Benson, Arizona - PTE-3.
- Atlas Powder Company, Dallas, Texas - PTE-4.
- Trojan Division, IMC Chemical Group, Inc., Allentown, Pennsylvania - PTE-5.

2. BASIS. This exemption is based on application for renewal from Hercules Incorporated dated January 26, 1978, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

- E. I. du Pont de Nemours & Co., Inc.'s application dated April 3, 1978.
- Austin Powder Company's application dated March 17, 1978.
- Apache Powder Company's application dated November 16, 1976.
- Atlas Powder Company's application dated March 20, 1978.
- Trojan Division, IMC Chemical Group, Inc.'s application dated April 3, 1978.

3. HAZARDOUS MATERIALS (Descriptor and class). Tailless MS connectors (delay connectors) Class C explosive or Class A explosive as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). Blasting caps- \* \* \*. Asterisks are to be replaced by the number of caps.

5. REGULATION AFFECTED. 49 CFR 173.66(g)(1), 173.103(a), 177.835(g).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as specified in 49 CFR 173.66(g)(1) for electric blasting caps, except that each connector may be cushioned in a plastic sheath approximately 4 inches long by 3/4 inch wide instead of a pasteboard tube enclosing each cap. For shipments by highway only shipments may be transported under the provisions of § 177.835(g) for electric blasting caps when otherwise packaged in accordance with this exemption. Trailer-on-flat-car is not authorized. For shipments by water, trailer-on-trailership is not authorized.

8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Operations as soon as practicable.

10. EXPIRATION DATE. March 20, 1980, for Hercules Inc., PTE-1, PTE-2, PTE-4, and PTE-5; June 30, 1978, for PTE-3.

Issued at Washington, D.C.:



Alan I. Roberts  
Director  
Office of Hazardous Materials Operations

MAY 30 1978

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Operations, U.S. Department of Transportation, Washington, D.C., 20590.  
Attention: Exemptions Branch.

Dist: B of E, USCG, FHWA, FRA